

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

April 26, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Ms. Case. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Brown, and pursuant to support received by Mr. Collins and Ms. Ash, agenda item #16 was removed from the Consent Agenda. Mr. Spiker moved to approve remaining Consent Agenda items, seconded by Mr. Valdez. Motion carried. Voting "yes" – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on April 12, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on April 19, 2010. Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Motion carried. Voting "yes" – all members of the governing body present.

Mayor Kaysen opened a public hearing for the purpose of receiving comments and input for the City of Cheyenne Comprehensive Consolidated Plan for 2010-2014 and the Annual Action Plan for Fiscal Year 2010-2011 for the City of Cheyenne Community Development Block Grant (CDBG) entitlement. Deanne Widauf, Housing and Community Development Office, provided an overview of the CDBG entitlement program and the Comprehensive Consolidated Plan, and cited some of the identified Plan goals and objectives. She noted the Consolidated Plan also incorporates the Annual Action Plan for fiscal year 2010-2011 for which the City's estimated entitlement allocation is \$580,253.00 with an anticipated additional \$5,000 in program income. Ms. Widauf described the grant application process; public notifications and opportunities for input; oversight of the grant process by the Advisory Council, and the Advisory Council's review and recommendations involving eligible applications. She identified proposed recommended projects and program administration, and estimated funding allocation amount for each. Upon inquiry regarding proposed funding for a Parks and Recreation structural safety and restoration project, Rick Parish, Parks and Recreation Director, clarified the project involves re-siding and energy efficient window replacements for the Pioneer Park Activity Center. There being no further comments or input, Mayor Kaysen advised the purpose of the hearing had been met and closed the hearing.

Mayor Kaysen welcomed students and their parents in the audience who were attending the meeting in conjunction with a school project.

“An Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in Sections 12 and 13, Township 13 North, Range 67 West of the 6th Principal Meridian, Laramie County, Wyoming (located East of Southwest Drive, South of Interstate 80, West of BNSF Railroad, and North of Woodenshoe Drive).” Francis Shive; Doris Garcia; Ellie Sturman; Leo Garcia; Dave Wilkinson; Kathleen Sheehan; Gay Woodhouse, attorney representing residents along Southwest Drive; Dan Frank, Frank Law Office, attorney representing Ms. Sheehan, and Jeff Ketcham, Laramie County Commissioner, spoke in opposition of the proposed annexation. Among the topics presented and discussed were: City/County zoning regulations; health, safety and welfare concerns involving the volume of train and vehicular traffic and affiliated traffic congestion and delays; unknown property development plans by the developer; annexation criteria pursuant to Wyo. Stat. §15-1-402; contiguity concerns relative to annexation of Swan Ranch area; county island creation; mental and financial stress to area residents and concerns involving future monetary liability involving infrastructure costs; request to eliminate Woodenshoe Drive from the annexation area; timeliness of emergency services response, and suggestion that a “sketch plan” be required to review developer’s proposed infrastructure, transportation and drainage solutions. Mike Basom, Dray, Thomson and Dyekman law firm, attorney representing the developer, spoke in favor of the annexation to enable the platting process to move forward to address issues raised involving safety and traffic concerns. He stated no changes to the area after annexation will be made until a plat is prepared and approved by the governing body. Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Ms. Ash. Discussion followed and included: Area access; traffic and transportation issues; property owner’s (developer) request for annexation; contiguity; area residents’ concerns that have been raised, and train traffic at the crossing on Southwest Drive. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Valdez voting “no”. (#3889)

“An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City map of the Cheyenne City Code, by changing the zoning classification from PUD Planned Unit Development District to MR-2 Medium Density Residential-Developing District for Lots 1 through 14 inclusive of Dry Creek Twin Homes Subdivision, Cheyenne, Wyoming, to be known as a portion of Woodhaven Subdivision (located west of College Drive, between the Dry Creek Channel and McCann Avenue).” Mr. Collins moved to approve on second reading, seconded by Ms. Ash. Mr. Spiker declared a conflict of interest (distant relationship with the developer) and vacated Council Chambers. Concern was expressed with uses allowed under the MR-2 zone as approved by the Board of Adjustment. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker returned to Council Chambers.

“An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City map of the Cheyenne City Code, by changing the zoning classification from MR-1 Medium Density Residential-Established District to MUB Mixed Use with Business Emphasis District for Lots 1 and 2; and the north 66-feet of Lots 3 and 4, Block 195, Original City, Cheyenne, Wyoming (located at the southwest corner of the intersection of E. 23rd Street and Russell Avenue).” Dr. Stephanie Erlich, homeowner in the area, spoke in favor of the zone change and proposed use of the building within the historic neighborhood. Rev. Dan McKinley, SonRise Church of the Nazarene (property owner), requested approval of the ordinance, advising the object of the re-zoning request involves potential sale of the property to assist with

building a new church; that the church has a contract with a funeral home interested in the property, and that this type of use would be suitable for the location. Mr. Collins moved to approve on second reading with Planning Commission restriction that “the use be limited to allow only a funeral home and related services,” seconded by Mr. Spiker. Comments were made regarding restricted property use if sale of the property to the funeral home did not occur, and possible further discussion on the topic at the next Public Services Committee meeting. Upon inquiry on whether other re-zoning actions had involved restrictions on the type of businesses allowed, Lisa Pafford, Building/Development Office, provided information on two recent conditional zoning restrictions approved by the governing body. Motion carried. Voting “yes” – all members of the governing body present.

“A Resolution authorizing the transfer of funds in the approximate amount of \$400,000.00 from the City’s Solid Waste Management Fund to the General Fund.” (Postponed on 04-12-10). Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Mr. Pierson. Mr. Brown moved to postpone for two weeks (to May 10, 2010), seconded by Dr. Rinne. It was noted that the Committee’s recommendation to postpone was to allow time for information to be received at the Council’s budget work session (held April 22nd). Motion to postpone failed. Voting “no” – all members of the governing body present. Comments followed regarding the probability that the funds would not be needed relative to FY 2010 employee furlough days or to balance the current fiscal year budget, but that the funds will be needed to help balance the FY2011 budget; time frame on transferring the amount into the general fund, and replenishing the Solid Waste Management Fund. Main motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Ash, Mr. Collins and Dr. Rinne voting “no”. (#5204)

“A Resolution amending Resolution No. 2852 establishing a payment schedule for Stage II of the Cheyenne Water Project.” (Postponed on 04-12-10). Mr. Brown moved to adopt, seconded by Ms. Broyles. Mr. Brown moved to postpone for two weeks (to May 10, 2010). Motion failed due to lack of a second to the motion. Discussion followed and included: “on/off budgeting” practices; current economic conditions; governing body’s fiscal responsibility; reduced municipal funding from the state; public perception on deferring the City’s annual payment to BOPU; indebtedness to future governing bodies; suggestion of inserting a specific date in the resolution as to when payment(s) to repay BOPU would be made; balancing the budget being a separate issue from 5th Penny Sales Tax; reducing budget costs through attrition instead of further reductions in employee work force; revisiting the resolution topic next fiscal year relative to status of budget revenues/expenditures; partial payments scenario; employee job security; legal reviews reflecting the annual payment is not a requirement, and concern with the effect on public services if additional reductions in work force occur. Upon inquiry regarding how many employee jobs may be affected if the \$1,000,000 payment is not deferred, City Treasurer Barb Dorr responded that approximately 15 jobs equates to \$1,000,000. Discussion continued and included: Options for consideration (i.e. use general fund reserves for the payment; impose additional reductions in work force, or delay the payment); willingness by BOPU to make the payment; public perception; reluctance to impose further work force reductions; across-the-board employee salary cuts and job sharing as cost savings measures, and status of budget savings suggestions submitted from employees. Mayor Kaysen provided the following information in response to discussion topics: Postponing action will not achieve a balanced budget required to be approved by July 1st; stronger revenues than anticipated for next fiscal year could allow for a payment(s) to BOPU to be acted upon; resolution wording providing for suspension of the bond payment, not forgiveness of making the payment; non-opposition by the BOPU regarding delay of the City’s payment; clarification that bondholders will be paid, and that water rates, per information provided by BOPU, will not increase based upon the City’s suspension of payment. He further informed that employee suggestions that have been

submitted are being pursued and some have merit; general fund reserves amount is “borderline” pursuant to the Resolution on the level of cash reserves, and that across-the-board employee salary reductions had been analyzed. Mr. Spiker moved to amend resolution wording in the Now, Therefore, Be It Resolved paragraph as follows: “ ... that Resolution No. 2852, adopted February 11, 1985, is hereby amended to temporarily suspend the \$1,000,000.00 payment to the Board of Public Utilities which is due on December 1, 2010, FOR A PERIOD OF 1 YEAR.”, and strike the remainder of the sentence, seconded by Mr. Brown. [Clerk’s note: Remainder of the current sentence to be removed reads: “and the suspension of said payment will remain in force and effect until such time as the governing body elects to repeal the suspension.”] Ms. Dorr advised the proposed amendment would mean there would then be a \$2,000,000 burden on the general fund budget for that year, and commented generally on budget considerations. Comment followed on the intent of the motion to amend, which was not to incur a \$2 million dollar payment within a fiscal year, but to insert a date specific for the City to make payment. Mr. Brown withdrew his second to the motion. Upon request for amendment wording assistance, City Attorney Dan White suggested proposed language could be as follows: “ ... that Resolution No. 2852, adopted February 11, 1985, is hereby amended to temporarily suspend the \$1,000,000.00 payment to the Board of Public Utilities which is due on December 1, 2010 until December 1, 2011, and to temporarily suspend the \$1,000,000.00 payment to the Board of Public Utilities which is due on December 1, 2011 until December 1, 2012.” Mr. Spiker moved to amend per Mr. White’s suggested wording, seconded by Mr. Brown. Comments followed on specifying payment dates vs. current wording addressing one payment and BOPU approval with the current wording. Mr. Spiker withdrew his motion to amend with concurrence by Mr. Brown as second to the motion. Mr. Spiker moved to amend the paragraph as follows: “ ... temporarily suspend the \$1,000,000.00 payment to the Board of Public Utilities which is due on December 1, 2010 UNTIL DECEMBER 1, 2012.”, and revise affiliated language as necessary in the resolution, seconded by Mr. Brown. Motion to amend carried. Voting “yes” – all members of the governing body present. Upon inquiry, Ms. Dorr advised yearly payroll costs in total is approximately \$34,000,000. Comments followed on reducing employees’ salaries to make up the \$1,000,000 deficit. Ms. Dorr advised a good portion of the \$34,000,000 payroll budget involves health insurance coverage costs and a percentage cut in pay would not affect insurance costs unless employees were asked to pay a larger portion of the insurance payment. Main motion as amended carried. Voting “yes” – Mr. Brown, Ms. Broyles, Mr. Pierson, Dr. Rinne, Mayor Kaysen. Voting “no” - Ms. Ash, Mr. Collins, Dr. Rinne and Mr. Spiker. (#5205)

“A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for BOPU Subdivision, a replat of Block 149, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of Snyder Avenue and W. 24th Street).” Brad Emmons, AVI, agent for BOPU, advised the plat is for a new BOPU administration building, noting the preliminary plat had been previously approved as well as a resolution relative to State Land and Investment Board (SLIB) funding. Mr. Collins reported there was no recommendation on the item from Public Services Committee. Mr. Pierson moved to adopt, seconded by Mr. Valdez. Comments followed on whether utilization of vacant building sites in the community had been investigated; support for the project and area enhancement for the Snyder/24th site, and past Council work session discussion relative to the project and building site, which will add on to a present building. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Collins and Dr. Rinne voting “no”. (#5206)

[CA] “A Resolution acknowledging receipt of and approving the “West Allison Road Corridor Study” prepared by Western Research and Development, Ltd., for the Cheyenne Metropolitan Planning Organization.” Motion (per Consent Agenda) carried. (#5207)

“A Resolution certifying that the Governing Body of the City of Cheyenne is in agreement with the Laramie County Board of Commissioners as to the current Countywide Consensus Block Grant application to the State Loan and Investment Board.” Cate Cundall, Town of Pine Bluffs Clerk/Treasurer, and Cindy Schneider, Grants Manager, provided information on a proposed substitute resolution reassigning previously allocated project funds to the Town of Pine Bluffs to a different Town project due to an emergency situation involving the Town’s non-working 911 response system. Ms. Schneider clarified that under the consensus process, funding from the past biennium has already been allocated to the Town and to enable a project change it must be agreed to by all entities within the county, stating the change involves no financial impact to the City. Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Pierson. It was advised the substitute would include language to “add one project for the town of Pine Bluffs.” Upon inquiry, Ms. Schneider confirmed the resolution, including the amendment, is a timely matter due to SLIB’s application deadline, and that the County Commissioners have the item on their upcoming meeting agenda. Motion to amend carried. Voting “yes” – all members of the governing body present. Comment was made supporting other communities’ needs involving the consensus block grant process. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. (#5208)

[CA] “A Resolution adopting the City of Cheyenne Comprehensive Consolidated Plan 2010-2014, which has been prepared by the Cheyenne Housing and Community Development Office” -- referred to Finance Committee (sponsors - Ms. Broyles and Mr. Pierson).

[CA] “A Resolution supporting providing funds from the City’s Optional One Percent Sales Tax Infrastructure Development Fund for the purpose of extending infrastructure required to provide non-stop jet service between Cheyenne, Wyoming, and Dallas, Texas, on American Airlines” ((2007 - 2010 1% Sales Tax) -- referred to Finance Committee (sponsors - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker, Mr. Valdez and Mayor Kaysen).

Preliminary Plat for Woodhaven Subdivision, a replat of Lots 1 & 2, Block 1, Farson Addition and Lots 1 through 14 inclusive of Dry Creek Twin Homes Subdivision, Cheyenne, Wyoming (located east of and adjacent to Wills Road, south of the Dry Creek Channel and Parkview Drive). Mr. Spiker declared a conflict of interest (distant family relationship) and vacated Council Chambers. Kelly Hafner, Benchmark Engineers, agent for the applicant and property owner, stated the item is affiliated with an early item (#10) on the agenda and that the replat of previous items that have come before the governing body and will clean up several issues involving the project area, and noted development intent is for town homes (multi-family housing). Mr. Collins moved to acknowledge receipt of the preliminary plat with staff recommendations #1 and staff recommendation #3 as outlined in the substitute staff report, seconded by Mr. Brown. Concern was expressed that alleyways should be provided behind housing developments to provide for rear vs. street front garages. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers with the exception of Dr. Rinne voting “no”. Following announcement of the vote, Mr. Spiker returned to Council Chambers.

[CA] Memorandum of Understanding between Laramie County, Wyoming, and the City of Cheyenne, to provide public transportation services to Laramie County Community College, the City/County Health Department, and an area of Laramie County adjacent to the City. Motion (per Consent Agenda) carried (funding to the City in an amount not to exceed \$71,347.65). (#5534)

[CA] Agreement between the City of Cheyenne and United States of America for limited hunting within the boundaries of the Central Great Plains Field Station. Motion (per Consent Agenda) carried. (#5535)

[CA] Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc. to authorize the use of the parking lot leased from the United States Department of the Air Force, located on F.E. Warren Air Force Base, for transportation services during the 2010 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#5536)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District No. 1 to provide transportation services during the 2010 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried (amount not to exceed \$30,000.00). (#5537)

[CA] Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc. to authorize the use of buses leased to the City by Laramie County School District No. 1 to provide transportation services during the 2010 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#5538)

[CA] Agreement between Laramie County, Wyoming, and the City of Cheyenne to provide methamphetamine prevention and education program services. (American Recovery & Reinvestment Act, Edward Byrne Memorial Justice Assistance Grant. Motion (per Consent Agenda) carried. (#5539)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District No.1 to provide transportation services for Summer Recreation. Motion (per Consent Agenda) carried. (#5540)

[CA] Professional Services Agreement between the City of Cheyenne, Parks & Recreation Department, and Kone, Inc. for complete design and build of an Americans with Disabilities Act compliant elevator at Taco John's Ice & Event Center (State Loan & Investment Board). Motion (per Consent Agenda) carried (amount not to exceed \$247,457.00). (#5541)

[CA] Agreement between the City of Cheyenne and the Boys and Girls Club of Cheyenne, Inc., to lease the building located at 1700 Snyder Avenue, Cheyenne, Wyoming -- referred to Finance Committee.

[CA] Contract Modification #1 to Contract #5220 between the City of Cheyenne Sanitation Department and Tatooine Electronic Systems for the recycling of electronic. Motion (per Consent Agenda) carried. (#5220)

[CA] Contract Modification #2 to Contract #5052 between the City of Cheyenne Sanitation Department and Wyoming Salvage for removal of all appliances, metals and steel from the City Landfill. Motion (per Consent Agenda) carried. (#5052)

[CA] Contract Modification #2 to Contract #5056 between the City of Cheyenne Sanitation Department and Magic City Enterprises for sorting, processing, and marketing of recyclable materials. Motion (per Consent Agenda) carried. (#5056)

[CA] Contract Modification #1 to Contract #5531 between the City of Cheyenne and The Sanborn Map Company, Inc., Colorado Springs, CO, for High Resolution Aerial. Motion (per Consent Agenda) carried (amount not to exceed \$98,702.26). (#5531)

[CA] Contract Modification #2 to Contract #5477 between the City of Cheyenne and Recco, Inc., d/b/a Five-R Company for Tyvek house wrap & reconfiguration of the retaining wall at the Transfer Station (Solid Waste Fund). Motion (per Consent Agenda) carried (amount not to exceed \$7,750.00). (#5477)

[CA] Contract Modification #1 to Contract #5468 between the City of Cheyenne and Reiman Corp. to place existing traffic signal interconnect lines underground for the Carey Avenue & Pioneer Avenue Rehabilitation Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$21,587.50). (#5468)

[CA] Amendment #1 to Contract #5327, Transmission Easement License Agreement, between the City of Cheyenne and Silver Sage Windpower, LLC for transmission of electricity across a certain portion of the City's Happy Jack Landfill property -- referred to Finance Committee.

[CA] Consideration of Bid #M-16-10 for a contract between the City of Cheyenne and JTL Group, Inc., d/b/a Knife River, for the FY 2010 Concrete Overlay Project for Street and Alley Department (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$355,060.35). (#5542)

[CA] Consideration of Bid #M-17-10 for a contract between the City of Cheyenne and S&S Builders, LLC, for FY 2010 Intersection Repair Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$267,899.60). (#5543)

[CA] Consideration of Bid #M-18-10 for a contract between the City of Cheyenne and Don Kehn Construction, Inc., Ft. Collins, CO, for FY 2010 Inlet Repair Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$72,316.35). (#5544)

[CA] Consideration of Bid #M-19-10 for a contract between the City of Cheyenne and JTL Group, Inc., d/b/a Knife River, for annual contract for furnishing aggregates for the Street and Alley Department (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$22,500.00). (#5545)

[CA] Consideration of Bid #M-20-10 for a contract between the City of Cheyenne and JTL Group, Inc., d/b/a Knife River, for annual contract for hot plant mix, asphalt tack oil and cold mix for Street and Alley Department (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$377,080.00). (#5546)

[CA] Consideration of Bid #R-10-10 between the City of Cheyenne and Rehrig Pacific Co., Los Angeles, CA, for furnishing and delivering 10,000 automated refuse carts for the Sanitation Department. Motion (per Consent Agenda) carried (amount not to exceed \$515,120.00). (#5547)

Appointment of Edward F. Murray, III to the Cheyenne Downtown Development Authority Board. Mr. Valdez moved to approve, seconded by Collins. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Reappointment of John Parks to the International Fire Code Board of Appeals and Mona Pearl to the Cheyenne-Laramie County Economic Development Joint Powers Board. Mr. Collins moved to approve, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made of a Public Hearing to be held May 10, 2010 at 6:00 p.m. in City Council Chambers to determine whether compliance of annexation conditions required by Wyo. Stat § 15-1-402 exists for a parcel of land being situated in a portion of Tracts 7 and 10, Dell Range Addition 2nd Filing; Lot 3, Smithson View, together with a portion of Carla Drive, Thomas Road and College Drive, Laramie County, Wyoming (generally located north of and adjacent to Carla Drive, between Ridge Road and College Drive).

Under other business, Ms. Ash provided brief information on an educational project through the State Dept. of Education involving a NASA funded grant involving construction of wind turbines and middle school student participation, and that the project may provide an opportunity for city involvement.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:09 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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